Technico Construction Services, Inc.
GENERAL CONTRACTORS. CONSTRUCTION MANAGERS
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SUBCONTRACT AGREEMENT- NYC SCA Contract # C000080844 – PS 515(X) – 3850 REVIEW PLACE, Bronx, NY 10463 – NEW SCHOOL BUILDING.

This subcontract (hereinafter "Subcontract" or "Agreement") made this 4th day of June **2025** by and between **Technico Construction Services, Inc.** the General Contractor (hereinafter "General Contractor") and **Elli NY Design Corporation. 50-01 Metropolitan Ave Suite 1, Ridgewood, NY 11385. (**thereinafter "Subcontractor").

WITNESSETH:

Whereas **Technico Construction Services, Inc.**, entered into an Agreement as General Contractor with the **New York City School Construction Authority** (hereinafter "Owner"), hereinafter called the PRINCIPAL CONTRACT, for **C000080844 – PS515(X) at 3850 Review Place, Bronx, NY 10463** (hereinafter "Project") and which PRINCIPAL CONTRACT, for all purposes under this SUBCONTRACT, includes Plans and Specifications. All Principal Contract documents are collectively referred to as the PRINCIPAL CONTRACT and which construction to be completed under said PRINCIPAL CONTRACT is hereinafter called the "Construction".

NOTES:

- This Subcontract Agreement is contingent on the approval of the Subcontractor by the Owner.
- Email Signatures shall be deemed an original signature for all purposes.

And whereas the work (hereinafter "Work") covered by this SUBCONTRACT is part of the Construction provided for and required under said Principal Contract. Now therefore the Subcontractor, for the considerations set forth agrees to and with the General Contractor, shall and will furnish all labor, materials, tools, equipment, plant, appliances, temporary structures, permits, licenses and all other things necessary to complete in the most substantial and workmanlike manner, in exact accordance with the terms and conditions of the said Principal Contract and to the satisfaction and acceptance of the Owner and/or authorized agent of the Owner, all of the following work:

ARTICLE 1 SCOPE OF WORK

See attached Exhibit "B" for all contract documents and Exhibit "A" for scope of work.

ALL OF THE ABOVE WORK SHALL BE PERFORMED FOR THE SUM OF
$950,000.00 ..... NINE HUNDRED FIFTY THOUSAND DOLLARS AND ZERO CENTS.
(Price is subject to additions and / or deletions of work.)

ARTICLE 2 PAYMENTS

A. The General Contractor shall pay to the Subcontractor the foregoing sum including the unit prices, if any, for all Work covered by this Agreement subject to the authorized additions and/or deletions hereinafter provided for. Each month, after the commencement of the Work hereunder, the Subcontractor shall make a written monthly request for payment to the General Contractor for the Work completed during the preceding month. Each request shall be filed at the end of each month and payment shall be made within 10 days after receipt of payment by General Contractor. Except the first payment which shall be paid no sooner than forty-five (45) days from the commencement of the Subcontractor's work. Subject to the approval of the General Contractor, the Owner, the Subcontractor shall be entitled to payment thereon in an amount equal to:

1. The total value of the Work accepted as performed or installed.

2. Less 5 percent (5%) retainage and less prior payments. The Subcontractor further agrees that no materials or equipment required by the Specifications will be purchased under a conditional sales contract, or with the use of any security agreement or other vendor's title or lien retention instrument.
3. The Subcontractor shall submit evidence satisfactory to the Owner and General Contractor, that no unpaid claims exist against it for labor, materials, services, supplies of other obligations incurred by the Subcontractor in the performance of the Work hereunder.

B. Final payment shall be payable to Subcontractor upon the expiration of thirty (30) days after the Work is fully completed, provided all the following have occurred:

1. All Work hereunder requiring inspection by municipal or other governmental authorities having jurisdiction has been inspected and approved by such authorities and by the rating or inspection organization, bureau, association or office having jurisdiction.

2. All Certificates of Beneficial Use or other approvals, with respect to all units of the project have been issued by state or local governmental authorities having jurisdiction.

3. All punch list work pertaining to the Subcontractor's Work, as identified by the Owner and the General Contractor, has been completed by the Subcontractor.

4. All deliverables, including as-built and record drawings, O&M manuals, training, attic stock, warranties, etc. have been received and approved by the Owner.

5. The Subcontractor shall have fulfilled all of its obligations hereunder including but not limited to all labor standards and prevailing wage requirements.

6. The Subcontractor shall furnish, as set forth in the PRINCIPAL CONTRACT, or at the request of the Owner, all affidavits, certificates and such other data as may be required by the Owner.

7. All payments received by the Subcontractor hereunder shall be held by him as Trust Funds, as same are more fully defined under the New York State Lien Law, for the payment of labor, materials, and services, and all other charges incurred in connection with the performance of the Subcontractor's Work, and shall not be applied for other purposes, until such obligations are satisfied.

8. The Subcontractor shall submit evidence satisfactory to the Owner and General Contractor, that no unpaid claims exist against it for labor, materials, services, supplies of other obligations incurred by the Subcontractor in the performance of the Work hereunder.

9. A General Release, in a form as prepared by the Owner or General Contractor, shall be executed and delivered by the Subcontractor before final payment is made.

10. The General Contractor has been paid in full by the Owner for work related to this agreement.

ARTICLE 3 PRINCIPAL CONTRACT REQUIREMENTS

This SUBCONTRACT is to be performed in all respects in accordance with and subject to the provisions and conditions of the PRINCIPAL CONTRACT as hereinabove defined to the full extent that every part thereof is applicable to the Work to be performed hereunder. All of the documents comprising the PRINCIPAL CONTRACT are on file in the General Contractor's office and the Subcontractor acknowledges by his signature to this subcontract that he has carefully examined them and understands them fully and completely and also the conditions at the site and the nature and location of the Work. Every part of said PRINCIPAL CONTRACT is made a part hereof as fully and completely as though the same were written out at length herein as same is applicable to the Work. The Subcontractor warrants to the Owner and the General Contractor that the work, when completed, will comply fully

with all PRINCIPAL CONTRACT requirements and applicable building and safety codes, regulations, and construction requirements imposed or enforced by any governmental agencies in existence on the date of execution of this Agreement, without regard to any errors, omissions or deficiencies in the drawings and specifications.

ARTICLE 4 TIME IS OF THE ESSENCE

The Subcontractor expressly recognizes that time is of the essence as stated in the PRINCIPAL CONTRACT and Subcontractor agrees to perform the Work in accordance with the Schedule as set forth and therefore agrees to procure and prepare his materials and manufactured products so as to be ready to begin work in the field when directed by the General Contractor pursuant to the Schedule. The Subcontractor shall do everything in his power to perform his Work with sufficient forces and materials and in cooperation with other contractors and subcontractors to complete the Work in a skillful and expeditious manner. The Subcontractor shall finish the several parts and the whole of said Work at such times as will, in conjunction with the Work of other trades engaged thereon, insure the uninterrupted progress of the entire Work and shall complete the Work as rapidly as field conditions permit, but in no event shall any portion of the Work exceed the time for completion as specified (or extended thereunder) within the PRINCIPAL CONTRACT, or an early date if one has been set forth.

ARTICLE 5 PROGRESS SCHEDULE

The General Contractor has prepared and furnished a progress schedule to the Owner. The General Contractor at all times reserves the right to reasonably alter and modify such progress schedule in pursuance of its duties of determining and coordinating the progress of the Work. Except as otherwise provided, the Subcontractor expressly acknowledges that the Owner and/or the General Contractor shall not be liable for damages of any kind to the Subcontractor resulting from any modification or change in the said progress schedule or modifications or changes in the sequence or quantity of the Work hereunder. In the event the Work of the Subcontractor is delayed without its fault and for causes beyond its control, the Subcontractor agrees that it will, within seventy-two (72) hours of the occurrence or discovery of the delay, notify the General Contractor in writing, transmitted via United States Mail, Certified, of the nature and cause of such delay. Should the Subcontractor experience a delay, for any reason, and thereafter fail to provide the notification as set forth above, the General Contractor may consider such failure to provide notice as above, a waiver.

ARTICLE 6 PROSECUTION OF THE WORK

The Subcontractor shall not prosecute the Work with such employees or in such manner, or use such materials or manufactured products as will, in the opinion of the Owner or General Contractor, hinder, interfere with, molest or delay the prosecution of the Work of the General Contractor or any other contractors or subcontractors engaged on the Project.

A. Should the Subcontractor at any time refuse or neglect to supply sufficient properly skilled workmen or sufficient materials or the proper quality or quantity, or fail in any respect to prosecute the Work with promptness and diligence or fail in the performance of any of the covenants on its part herein contained, or if it should make a general assignment for the benefit of creditors, or shall be adjudged a bankrupt, or if a receiver shall be appointed on account of insolvency, the General Contractor may, at his option:

1. If, in the reasonable opinion of the General Contractor, the Subcontractor is not proceeding with reasonable diligence to perform any part of its Work, due to its acts or omissions thereby impeding the progress of the construction, the General Contractor may direct the Subcontractor to perform such work as is necessary, during overtime or premium hours. The Subcontractor hereby agrees to perform said work as directed, during overtime and/or premium hours, without any additional charge or compensation, and at no change to the price of the contract work.

2. If, in the reasonable opinion of the General Contractor, the Subcontractor is not proceeding with reasonable diligence to perform any part of its Work, due to its acts or omissions thereby impeding the progress of the construction, the General Contractor may supplement the resources

of the Subcontractor with his own, or with those of other subcontractors, and deduct the cost of such supplemental resources, including labor, material and equipment from the Subcontractor's price. The Subcontractor shall also be liable to the General Contractor and other subcontractors for any liquidated damages or cost impacts resulting from delays caused by Subcontractor's default (as provided in Para. A above).

3. The General Contractor may choose to terminate the Subcontract due to the default of the Subcontractor as provided in Para. A above. The General Contractor shall be required to furnish Subcontractor with written notice of the pending default. In the event within five (5) days of the Subcontractor's receipt of said notice, Subcontractor fails to cure the noted default or undertake significant measures to cure the default, the General Contractor can elect to terminate the Subcontract. Upon termination of the subcontract for the default of the Subcontractor, the General Contractor may elect to provide any labor, equipment and materials and to employ any other person or persons to finish the Work and to provide the materials, therefore. If the General Contractor elects to proceed under this paragraph A.3,

   i. The Subcontractor shall remain liable to the General Contractor for the difference between the unpaid balance of the amount to be paid under this SUBCONTRACT and the cost of completing the Work of the Subcontractor, including any and all damages incurred through the default of the Subcontractor.

   ii. The Subcontractor shall not be entitled to receive any further payment under this SUBCONTRACT until the said Work shall be fully completed and accepted, at which time, if the unpaid balance of the amount to be paid under this SUBCONTRACT shall exceed the expense incurred by the General Contractor in finishing the Work, such excess shall be paid by the General Contractor to the Subcontractor, but if such expense shall exceed such unpaid balance, the Subcontractor shall pay the difference to the General Contractor. Upon the termination of the employment of the Subcontractor for cause, the General Contractor shall have the right to take possession of all tools and equipment and all materials and appliances of every kind whatsoever manufactured or fabricated for said Construction, whether on the premises or otherwise, for which the Subcontractor shall receive credit.

ARTICLE 7 SHOP DRAWINGS

The Subcontractor shall prepare, at its own expense, shop drawings, schedules, reports, or any other data that may be necessary in the opinion of the General Contractor, Owner for distribution among other contractors, subcontractors, the Owner or others, for the proper prosecution of the Work and shall furnish promptly, whenever requested by the General Contractor, Owner, sufficient copies of these data for distribution to others employed on the project. The Subcontractor shall exercise the utmost diligence to obtain all drawings, details and information necessary to fulfill the Work herein contemplated and if, at any time, drawings or information have not been furnished, the Subcontractor will, from time to time and at frequent intervals, inform the General Contractor and the Owner in writing as to what drawings or information may still be required to complete the Work herein contemplated within the time specified. It shall not be incumbent upon the Owner and/or the General Contractor to discover any mistakes, errors, omissions, or deviations from the contract requirements in the Subcontractor's drawings. Furthermore, final approval by either the General Contractor or Owner of said drawings made by the Subcontractor, shall not relieve it from responsibility for unauthorized changes, deviation, omissions or errors of any sort in his/her/its drawings versus those required and/or set forth in the PRINCIPAL CONTRACT documents.

ARTICLE 8 SURROUNDING WORK

Before proceeding with the Work under this SUBCONTRACT, the Subcontractor will accurately check all previous and surrounding work done by other trades and determine the correctness of same as it relates to the Subcontractor's

trade and report in writing any defects found. Failure on the Subcontractor's part to detect and report discrepancies will relieve the Owner and/or General Contractor of any and all claims to recover costs, expenses or damage resulting therefrom. The Subcontractor shall lay out its own Work and be responsible for the accuracy of same. The Subcontractor shall conform its own Work to the work performed by other trades so that the work of all shall be coordinated. In the event of the failure of the Subcontractor and such other persons to agree for any reason as to the extent of such cooperation or of the extent of the Work to be done by any or either, to insure proper consummation of items of contiguous work or to insure the carrying out of their respective agreements, such disagreement shall be resolved by the General Contractor and the Owner, whose decision shall be final and binding, which shall be neither arbitrary and capricious.

ARTICLE 9 HOLD HARMLESS

To the extent permitted by law, the Subcontractor shall indemnify, hold harmless and defend Owner, Contractor, Architect, Architect's consultants and agents and employees of any of them from and against all claims, damages, losses and expenses including but not limited to attorney's fees arising out of or resulting from the performance of the agreement, provided any such claim, damage, loss or expense (a) is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property, including loss of use resulting therefrom and (b) is caused in whole or in part by any act or omission of the Subcontractor or anyone directly or indirectly employed by it or anyone for whose acts it may be liable pursuant of the performance of the agreement. Notwithstanding the foregoing, Subcontractor's obligation to indemnify Owner, Contractor, Architect, Architect's consultants, and agents and employees of any of them for any judgment, mediation or arbitration award or settlement shall extend only to the percentage of negligence of Subcontractor or anyone directly or indirectly employed by it or anyone for whose acts it may be liable in connection to such claim, damage, loss and expense. In any and all claims against Contractor or any of its agents or employees, employee of Subcontractor, the indemnification obligation under this paragraph shall not be limited by any limitation of amount or type of damages, compensation or benefits payable by or for Subcontractor under workers' compensation and benefit acts or other employee benefit acts.

ARTICLE 10 WAIVERS OF SUBROGATION

The Contractor and Subcontractor waive all right s against (I) each other and any of their subcontractors, sub-subcontractors, agents and employees, each of the other , and (2) the Owner, the Architect, the Architect's consult ant s, separate contract or s, and any of their subcontractors , sub-subcontractors , agents and employees for damages caused by fire or other causes of loss to the extent covered by property insurance provided under the Prime Contractor other property insurance applicable to the Work, except such right s as they may have to proceeds of such insurance held by the Owner as a fiduciary. The Subcontractor shall require of the Subcontractor's Sub-subcontractors, agents and employees, by appropriate agreements, written where legally required for validity, similar waiver s in favor of the parties enumerated herein. The policies shall provide such waivers of sui rogation by endorsement or otherwise. A waive r of subrogation shall be effective as to a person or entity even though that person or entity would otherwise have a duty of indemnification, contractual or otherwise , did not pay the insurance premium directly or indirectly, and whether or not the person or entity had an insurable interest in the property damaged.

ARTICLE 11 INSURANCE

A. The Subcontractor shall protect, by his/her/its own insurance except to the extent that Owners OCIP Polices provide coverage, all owned, rented, borrowed or leased tools, equipment, material, plant and similar articles for which the Owner and the General Contractor assume no responsibility (except such damage due to their negligence).

B. The Subcontractor shall provide and maintain the following insurance either directly or by the Owner's OCIP Policies or both with such insurance companies and in such form as will be satisfactory to the Owner and General Contractor, as their interest may appear;

1. WORKMEN'S COMPENSATION and EMPLOYERS LIABILITY in accordance with the laws of the State

of New York.

2. PUBLIC LIABILITY (COMPREHENSIVE GENERAL LIABILITY), including operations, independent contractors, completed operations, contractual liability, explosion, collapse and underground hazard (X.C. & U.), and personal injury, all on a per occurrence basis.

3. COMPREHENSIVE AUTOMOBILE LIABILITY, covering owned, non-owned and hired vehicles, providing bodily injury and property damage coverage, all on a per occurrence basis.

4. STATUTORY DISABILITY BENEFITS in accordance with the laws of New York.

5. EXCESS UMBRELLA COVERAGE to be provided on a "Following Form Basis" in excess of the Comprehensive General Liability Coverage and Comprehensive Automobile Coverage, detailed in Paragraphs (2) and (3) above.

C. Total limits of liability, bodily injury and property damage shall not be less than $2,000,000.00, per occurrence, combined bodily injury and property damage with respect to the insurance provided in (2), (3) and (5).

D. The Subcontractor shall carry Completed Operations coverage for a period of at least one (1) year after the earlier of the completion or termination of Work, at the limits of liability required under the Principal Contract. The Subcontractor shall furnish the Owner and General Contractor with Certificate of Insurance evidencing same, with continuation of contractual indemnity for the specified period.

E. Certificates of Insurance in triplicate shall be furnished the Owner and General Contractor by the Subcontractor prior to commencement of Work detailing all insurance required of the Subcontractor and shall state that the Owner, by name, and Technico Construction Services, Inc., Long Island City, New York 11101, as additional insured's, shall be given thirty (30) days prior written notice of material change, cancellation, or non-renewal of coverage indicated therein by Certified Mail.

F. The Subcontractor shall cause the commercial liability coverage required by the Subcontract Documents to include : (1) the Contractor, the Owner, the Architect and the Architect 's consultants as additional insured's for claims caused in whole or in part by the Subcontractor's negligent acts or omissions during Subcontractor's operations ; and (2) the Contractor as an additional insured for claims caused in whole or in part by the Subcontractor's negligent act s or omissions during the Subcontractor's completed operations. The Additional Insured's must be scheduled on CG 2010 0704 and CG 2037 0704 on a Primary and Non Contributory Basis.

G. The Contractor shall furnish to the Subcontractor satisfactory evidence of insurance required of the Contractor under the Prime Contract. Full Contractual Liability with no exclusion for third party action

H. The Contractor shall promptly, upon request of the Subcontractor, furnish a copy or permit a copy to be made of any bond covering payment of obligations arising under the Subcontract.

ARTICLE 12 INDEMNIFICATION

A. To the fullest extent permitted by law, the Subcontractor shall indemnify and hold harmless the Owner, Contractor, Architect, Architect's consultants, and agents and employees of any of them from and against claims, damages, losses and expenses, including but not limited to attorney's fees, arising out of or resulting from performance of the Subcontractor's Work under this Subcontract, provided that any such

claim, damage, loss or expense is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Work itself), but only to the extent caused by the negligent
acts or omissions of the Subcontractor, the Subcontractor's Sub-subcontractors, anyone directly or indirectly employed by them or anyone for whose acts they may be liable, regardless of whether or not such
claim, damage, loss or expense is caused in part by a party indemnified hereunder. Such obligation shall not
be construed to negate, abridge, or otherwise reduce other rights or obligations of indemnity which would otherwise exist as to a party or person described in this Article 12

B. In claims against any person or entity indemnified under this Article by an employee of the Subcontractor,
the Subcontractor's Sub-subcontractors, anyone directly or indirectly employed by them or anyone for whose acts they may be liable , the indemnification obligation under Article 12, section A shall not be limited by a limitation on the amount or type of damages, compensation or benefits to Subcontractor or the Subcontractor's Sub-subcontractors under workers compensation acts, disability benefit acts or other employee benefit acts .

ARTICLE 13 OWNER SERVICES

Subcontractor shall be allocated all Owner provided services necessary for Subcontractor to complete its Work.

ARTICLE 14 OSHA

Compliance with Safety Acts: The Subcontractor shall take all necessary steps to effect compliance with the Contractor Work Hours and Safety Standards Act, the Occupational Safety and Health Act and similar federal, state and local laws and ordinances and regulations thereunder. The Subcontractor further agrees to indemnify and hold harmless the Owner and General Contractor with respect to any losses or fines which may be incurred by reason of any alleged non-compliance by the Subcontractor with any of the statutes, ordinances and regulations above described relating to its performance of the Work. Such indemnification shall not only include the penal sum of said fines, but the legal costs incurred in defense of such matters or appearances at such times and places as same may require.

ARTICLE 15 ASSURANCE OF COMPLETION

The Subcontractor shall provide, if requested by the General Contractor, an Assurance of Completion of the Work covered in this SUBCONTRACT in the form of a duly authorized dual oblige performance and payment bond in penal amounts of not less than 100% of the subcontract amount in such form as previously agreed to. The bonds shall guarantee completion of the Work covered by this SUBCONTRACT, free and clear of mechanics and material liens and/or any other objectionable defects or encumbrances and according to the plans and specifications as approved, as well as indemnifying the Owner and General Contractor against any loss or claims, including claims for underpayment or non-payment of wages, resulting from or relating to the construction or installation of the Subcontractor's Work covered by this SUBCONTRACT.

ARTICLE 16 EXTRA WORK

The General Contractor has the right to order changes which may result in additions to the amount, type or value of the Work of this Subcontract, which are within the general scope of the Subcontract. Any such changes will be known as Extra Work and shall be negotiated and paid for in accordance with the Terms and Conditions of the Principal Contract.

The parties hereto agree that no oral modification of this SUBCONTRACT shall have any force or effect. The Subcontractor shall not be entitled to receive any extra compensation for modifications or changes of any kind whatsoever, regardless of whether the same were ordered by the Owner or any of its representatives, unless said order is given IN WRITING and IS SIGNED BY AN OFFICER or Project Manager of the General Contractor, and the Subcontractor specifically agrees that it will make no claim that it was authorized to do any extra work or make any modification to the work by the General Contractor or any representative at the site or elsewhere and if such Work was so ordered and the Subcontractor has performed the same but has received no written order therefore as herein provided, the Subcontractor shall and hereby does waive any claim for extra compensation therefore regardless of any subsequent written or verbal protests or claims by the Subcontractor, except as provided under the Principal Contract or if the General Contractor receives payment for same from Owner. The Subcontractor will render bills for any additional work as ordered above, in writing, at such time and in such form as directed by the General Contractor. For the purpose of authenticating any costs associated with such bills for extra or changed work, the Subcontractor agrees to produce any and all data from his records or under his control, which the Owner or General Contractor may request, including but not limited to; invoices, bills, bills of lading, checks, drafts, wire transfers or other forms of payment, payrolls, time sheets, quarterly income tax returns (Form 941), or other documents relevant to the issue being verified. In addition, all work must comply with the provisions of the PRINCIPAL CONTRACT General Conditions regarding Extra Work.

In the event the Contractor and Subcontractor fail to reach an agreement with regards to scope and value of Extra Work, or in the event the parties do not agree on whether or not a portion of the work is contractual or extra, the Contractor may issue, in writing, a directive to the Subcontractor to perform the said work, at which point the Subcontractor shall be obligated to diligently proceed with the work, including any associated submittals and procurement. Furthermore, the Subcontractor shall be obligated to perform the disputed work within the time constraints set forth in the Principal Contract and the Project Schedule. Failure by the Subcontractor to proceed with the disputed work, in accordance with the written directive, shall render him liable for any delays to the Project Schedule, as well as for associated liquidated damages or cost impacts to the General Contractor and other subcontractors, resulting from Subcontractor's failure to perform the disputed work. The Subcontractor may pursue payment and/or time extension for disputed work retroactively only if he has received a written directive from the General Contractor to proceed with the same.

ARTICLE 17 CONTRACT WORK HOURS & SAFETY STANDARDS LAWS

A. OVERTIME REQUIREMENTS. No contractor or subcontractor contracting for any part of the Construction, which may require or involve the employment of laborers or mechanics, shall require or permit any such laborer or mechanic in any workweek, in which he or she is employed on such work, to work in excess of eight hours in any calendar day or in excess of forty hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and one-half times the basic rate of pay for all hours worked in excess of eight hours in any calendar day or in excess of forty hours in such workweek, whichever is greater.

B. VIOLATION; LIABILITY FOR UNPAID WAGES; LIQUIDATED DAMAGES. In the event of any violation of the clause set forth in subparagraph (a) of this paragraph, the Subcontractor shall remain liable for the unpaid or underpaid wages and any of its lower tier subcontractors. In addition, such Subcontractor and its lower tier subcontractors shall be liable to the General Contractor, for liquidated damages if same are imposed under the Principal Contract for such violations. Such liquidated damages shall be computed with respect to each individual laborer or mechanic, including watchmen and guards, employed in violation of the clause set forth in subparagraph (a) of this paragraph, in the sum of $10 for each calendar day on which such individual was required or permitted to work in excess of eight hours or in excess of the standard workweek of forty hours without payment of the overtime wages required by the clause set forth in subparagraph (a) of this paragraph.

C. WITHHOLDING FOR UNPAID WAGES AND LIQUIDATED DAMAGES. The General Contractor, or the Owner or its designee shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any moneys payable on account of Work performed by the Subcontractor or its lower tier subcontractors under this SUBCONTRACT with General

Contractor, such sums as may be determined to be necessary to satisfy any liabilities of such Subcontractor or its lower tier subcontractors for unpaid wages, underpaid wages and liquidated damages as provided in the clause set forth in subparagraph (b) of this paragraph.

D. The Subcontractor will be required to execute Certified Payroll Reports, and obtain same from its lower tier subcontractors, if any, as a condition precedent to the processing of any and all progress payments under ARTICLE 2 PAYMENTS, as required by the Principal Contract.

ARTICLE 18 EQUAL EMPLOYMENT OPPORTUNITY

During the performance of this SUBCONTRACT, the Subcontractor agrees as follows:

A. The Subcontractor will not discriminate against any employee or applicant for employment because of race, color, creed, sex, sexual persuasion or national origin. The Subcontractor will take affirmative action to assure the applicants are employed, and that the employees are treated during employment without regard to their race, color, creed, sex, sexual persuasion or national origin. Such actions shall include, but not be limited to the following; Employment, upgrading, demotion, or transfer, recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training including apprenticeship. The Subcontractor agrees to post in conspicuous places available to employees and applicants for employment notices to be provided setting forth the provisions of this nondiscrimination clause.

B. The Subcontractor will, in all solicitations or advertisements for employees placed by or on behalf of the Subcontractor state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual persuasion or national origin.

C. The Subcontractor will send to each labor union or representative of workers with which it has a collective bargaining agreement or other contract or understanding a notice to be provided advising the said labor union or workers representatives of the Subcontractor's commitments hereunder, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

D. The Subcontractor will comply with all provisions of Executive Order 11246 of September 24, 1965 and of the rules, regulations, and relevant orders of the Secretary of Labor.

E. The Contractor will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations, and orders of the Secretary of Labor, or pursuant thereto, and will permit access to its books, records, and accounts by the NYS Dept. of Labor and/or the Office of The Comptroller of the City of New York, for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

F. In the event of the Subcontractor's noncompliance with the nondiscrimination clauses of this Subcontract or with any of the said rules, regulations, or orders, this Subcontract may be canceled, terminated, or suspended in whole or in part and the Subcontractor may be declared ineligible for further government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulations or order of the Secretary of Labor, the NYS Dept. Of Labor, the Office of The Comptroller of the City of New York, or as otherwise provided by law.

ARTICLE 19 NO WORK STOPPAGE

No dispute shall entitle the Subcontractor to stop or delay performance of its work which shall in any case proceed as directed by the General Contractor provided Subcontractor has received payment for all Work of which payments have been received by the General Contractor from the Owner and owing to the Subcontractor. Failure of the Subcontractor to comply with the provisions of this paragraph shall constitute a material breach of this

SUBCONTRACT with all the remedies to the Owner and or General Contractor as provided in Articles hereof.

ARTICLE 20 NO INCREASE FOR TAXES

The payment amount of this SUBCONTRACT shall not be increased on account of any changes in the cost of any materials or labor and/or freight rates and/or on account of existing taxes or any taxes which are now or may hereafter be imposed by Federal, State or City Governments during the life of the SUBCONTRACT, including, but without limitation, Sales or Use Tax, Gross Receipts Taxes and Personal Property Taxes. As a condition precedent to the receipt of the final payment and/or retained percentage, if any, by the Subcontractor, he/she/it shall show evidence to the Owner and/or General Contractor that all payments of such taxes have been made.

ARTICLE 21 OWNER SUSPENSION OF THE WORK

Should the Owner discontinue or suspend the work, either the Owner or the General Contractor may thereupon elect to terminate this SUBCONTRACT. In the event of such termination, the Subcontractor shall be paid such compensation as provided under the Principal Contract for such terminations.

ARTICLE 22 LIENS

If at any time there shall be evidence of any lien or any other claim of any kind or description for which the funds of the underlying PRINCIPAL CONTRACT may become liable or encumbered, and which is chargeable to the Subcontractor or its lower tier Subcontractors, materialmen or suppliers, relating to undisputed payments received by Subcontractor, the General Contractor shall give the Subcontractor ten (10) days written notice to satisfy said lien or post a bond permitting such lien to be discharged of record. If after the expiration of such ten (10) day period the lien or claim remains outstanding, the General Contractor may, at its sole option, retain counsel to seek an Order of the Court setting an amount necessary to be posted to discharge said lien or claim, and thereafter, procure such bond in such amount as is required, and direct counsel to submit same to the Court for approval and receipt of a further Order discharging such claim or lien of record. The fair and reasonable costs of counsel as mentioned above are hereby fixed and agreed by all parties at $1,000.00. The General Contractor may deduct said sum, along with the cost associated in procuring the lien/claim bond, or extending the term thereof if necessary, from payment then due or thereafter to become due, the Subcontractor. Further, the General Contractor may retain from payment then due or thereafter to become due, the entire penal sum of the bond, as indemnification in the event the bond is called to answer for the claim/lien as filed.

To the extent there shall be verifiable evidence of any damage, or damage shall be caused by this Subcontractor to another contractor or subcontractor, then the General Contractor shall have the right to retain out of any payment then due or thereafter to become due, an amount sufficient in the opinion of the General Contractor, to indemnify the General Contractor against any such claim, if Subcontractor fails to provide written assurance from its insurance carrier or surety on bonds that the insurer or carrier will assume responsibility in defending such claim..

If there shall prove to be any such lien or claim after all payments are made, the Subcontractor shall refund to the General Contractor all moneys that the latter may be compelled to pay in discharging or disposing thereof and of any other claim made in consequence of the Subcontractor's default, and this provision shall not be affected by the final payment. Nothing herein contained shall be construe as impairing the rights of the General Contractor or Owner to hold the Subcontractor or its sureties liable on any bond furnished by the Subcontractor for any breach of this SUBCONTRACT.

ARTICLE 23 GUARANTEE

The Subcontractor, on its own behalf and on behalf of its lower tier subcontractors, suppliers and materialmen, hereby guarantees the Work of the SUBCONTRACT for the period stated in the Principal Contract or one (1) year, whichever is greater. The Subcontractor shall provide guarantee bonds for the Subcontractor's Work as required by the Principal Contract.

ARTICLE 24 REPORTS

The Subcontractor agrees to furnish and submit all reports, affidavits, releases, waivers and forms, required under the terms of this SUBCONTRACT and the terms of the PRINCIPAL CONTRACT. The Subcontractor shall be liable to the General Contractor for any damages that may be sustained as a result of the Subcontractor's failure or refusal to furnish any required information in the proper form.

ARTICLE 25 WASTE CENTERPILE AT

The Subcontractor shall at all times keep the premises free from accumulated waste materials and rubbish caused by its work, and shall place such waste and rubbish in dumpsters furnished by General Contractor which are conveniently located to the Work and at the completion of the Work shall remove all such rubbish and waste from and about the buildings, also all tools and scaffolds and surplus material and shall leave the completed area "broom clean". In the event of the Subcontractor's failure to remove such rubbish, waste materials, etc., the General Contractor will remove such debris and charge the cost of removal against moneys due or to become due to the Subcontractor. The foregoing action on the part of the General Contractor requires no prior notice to be given to the Subcontractor, as the obligation to keep the Work area(s) waste free is continuing and unconditional pending completion of the Work.

ARTICLE 26 TEMPORARY POWER

The Owner may provide a temporary electric source, but same is neither guaranteed nor promised. The Subcontractor should expect to provide electric source at its sole cost and expense. All lines with appropriate outlets to which lighting connections and equipment/toll extensions may be made, shall be at the sole cost and expense of the Subcontractor. The Owner or the General Contractor may provide light for all normal construction purposes, but same is neither guaranteed nor promised. The Subcontractor should expect to provide same at its sole cost and expense; In any event, the Subcontractor shall be responsible for providing and maintaining any extraordinary lighting facilities or current necessary for the proper performance of its Work and the cost of all such electric current will be charged to the Subcontractor. The Subcontractor may be required to provide sub-metering and thereafter pay for the cost of current for same as may be necessary for its use.

ARTICLE 27 NO ASSIGNMENT

The Contractor shall not assign this SUBCONTRACT or any part thereof or any moneys due or to become due hereunder, without the written consent of the General Contractor. Any assignment made in violation of this clause shall be void.

ARTICLE 28 NEW YORK LABOR LAW §198-E

Subcontractor hereby agrees as follows:

1. to timely pay to employees, all wages, benefits, and wage supplements, including, under Labor Law 198-c(2), for employees earning less than $900/week, reimbursement for expenses, health, welfare, retirement, vacation, separation and holiday pay;
2. to comply with all applicable federal, state, and local wage and hour laws, including those governing frequency and timeliness of pay; wage deductions; regular rate of pay; wage notices; wage statements; and meal breaks;
3. to comply with any benefits laws (including sick leave);
4. to certify to contractor compliance with 1-3 above
5. to provide the information requested pursuant to section 756-F of the General Business Law 756-F;
6. to comply with Contractor's request to audit;
7. to indemnify Contractor for amounts paid to employees, costs, disbursements, and reasonable attorneys' fees"

ARTICLE 29 REPRESENTATIONS

Each of the parties hereto agrees as follows:

Technico: AT _____ Elli NY Design: _____

a. Entire Agreement. This Agreement constitutes the entire understanding and contract between the parties and supersedes any and all prior and contemporaneous, oral or written representations, communications, understandings and agreements between the parties with respect to the subject matter hereof, all of which representations, communications, understandings and agreements are hereby canceled to the extent they are not specifically merged herein. The parties acknowledge and agree that neither of the parties is entering into this Agreement on the basis of any representations or promises not expressly contained herein.

b. Modifications and Amendments. This Agreement shall not be modified, amended, canceled or in any way altered except by an instrument in writing and signed by both of the parties hereto. All amendments or modifications of this Agreement shall be binding upon the parties despite any lack of consideration so long as the same shall be in writing and executed by the parties hereto.

c. Waiver. Performance of any obligation required of a party hereunder may be waived only by a written waiver signed by the other party, which waiver shall be effective only with respect to the specific obligation described therein. The waiver by either party hereto of a breach of any provision of this Agreement by the other shall not operate or be construed as a waiver of any subsequent breach of the same provision or any other provision of this Agreement.

d. Severability. If any provision of this Agreement shall be unlawful, void, or for any reason, unenforceable, it shall be deemed severable from, and shall in no way affect the validity or enforceability of, the remaining provisions of this Agreement, which shall remain valid and enforceable according to its terms.

e. Governing Law. This Agreement was entered into in the State of New York and its validity, construction, interpretation and legal effect shall be governed by the laws and judicial decisions of the State of New York applicable to contracts entered into and performed entirely within the State of New York, regardless of choice of law or conflict of law.

f. Choice of Forum. Any action at law or in equity arising under this Agreement shall be filed only in the Supreme Court of the State of New York in and for the County of Queens or the United States District Court for the Eastern District of New York. The parties hereby consent and submit to the personal jurisdiction of such courts for the purposes of litigating any such action.

g. Attorneys' Fees. Not used intentionally.

h. Benefit of Successors and Assigns. This Agreement shall be binding upon and inure to the benefit of each of the parties hereto, and except as otherwise provided herein, their respective legal successors and assigns.

i. Gender. As used herein, all pronouns shall include the masculine, feminine, neuter, singular and plural thereof, whenever the context and facts require such construction.

j. No Partnership or Agency. Nothing in this Agreement shall be construed as creating a joint venture, partnership, agency, employment relationship, franchise relationship or taxable entity between the parties, nor shall either party have the right, power or authority to create any obligations or duty, express or implied, on behalf of the other party hereto, it being understood that the parties are independent contractors vis-a-vis one another.

k. No Third-Party beneficiaries. Nothing contained in this Agreement, express or implied, shall be deemed to confer any rights or remedies upon, nor obligate any of the parties hereto, to any person or entity other than such parties, unless so stated to the contrary.

l. Advice of legal counsel. Each party acknowledges and represents that, in executing this Agreement, it has received advice as to its legal rights from legal counsel and that the person signing on its behalf has read and understood all of the terms and provisions of this Agreement. Further, each party and their counsel have cooperated in the drafting and preparation of this Agreement. It shall be deemed their joint work product

and may not be construed against any party be reason of its preparation or word processing.

m. Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

n. Authority to execute. Each of the parties to this Agreement represents and warrants that it has full power to enter into this Agreement.

o. Headings. The headings, titles and subtitles herein are inserted for convenience or reference only and shall not control or affect the meaning or construction of any of the provisions hereof.

p. Cumulative remedies. Except as specifically provided herein, no remedy made available to the General Contractor hereunder is intended to be exclusive of any other remedy provided hereunder or available at law or in equity.

q. Performance and Payment Bonds. Performance and payment bonds for the Subcontractor's work shall be provided by the Subcontractor and are to be issued by a U.S. Department of Treasury listed bonding company, acceptable to the General Contractor for the full amount of the Subcontract, in the form previously agreed. The Subcontractor's bonding company must satisfy the rating and other requirements of the Principal Contract. The costs are to be borne by the Subcontractor.

IN WITNESS WHEREOF, the parties have executed this SUBCONTRACT the 5TH day of JUNE 2025.

GENERAL CONTRACTOR:
TECHNICO CONSTRUCTION SERVICES, INC.

By: Stylianos Aniftos, President
25-39 Borden Avenue
Long Island City, New York 11101
(718) 937-3800

Subcontractor:
Elli NY Design Corporation.

By: _____

Elli NY Design Corporation.
50-01 Metropolitan Ave Suite 1,
Ridgewood, NY 11385
(718) 418-9002

EXHIBIT "A"

Work Scope

Subcontractor: **Elli NY Design Corporation.**
Subcontract for: **Wood casework, cabinets, bathroom tops, and shelving.**

GENERAL CONDITIONS

1. The Subcontractor represents that he is familiar with and has expertise in the scope of this work. The Subcontractor agrees that this Subcontract Agreement includes all work for that scope as may be required to make a complete job which may be fully defined in the Contract Documents including but not limited to Division 6.

2. The Subcontractor shall comply with legal regulations including OSHA and of other governmental agencies having jurisdiction relating to work of this subcontract. The Subcontractor shall be held responsible for all fines assessed against the Contractor and/or the Owner due to the Subcontractor's violations. The Subcontractor shall give all notices and comply with all laws, ordinances, codes, rules and regulations bearing on the conduct of the work.

3. The subcontractors shall provide all engineering and design required for his work. The Subcontractor shall also furnish as-built drawings, operations and maintenance manuals, warranties and Owner training at completion of work as required.

4. The subcontractor shall collect and place all rubbish, scrap and other debris resulting from his work into designated locations or containers as directed by the General Contractor. CENTERPILE AT

5. The Subcontractor shall place and relocate his officer trailers and shanties when and where directed by the Contractor. It is understood that the Subcontractor is responsible for the acquisition, maintenance and subsequent rèmoval of all utility and telephone services required for his office trailers. Each structure the Subcontractor maintains must contain an appropriate number of fire extinguishers.

6. Due to the location of the project, the Subcontractor may encounter certain areas of special coordination with other contractors concerning traffic congestion, materials, delivery, etc. The Subcontractor is aware of these conditions and is not entitled to additional moneys for any hardships which may arise due to its having to take special measures and precautions regarding the same.

7. Temporary light, power for hand tools may be provided during normal working hours at no cost to the Subcontractor, but same is not guaranteed. Power requirements beyond those described above will be provided at the Subcontractor's expense.

8. Furnish and update on a weekly basis two-week look-ahead schedules, in the format and date as directed by the General Contractor.

9. The Subcontractor shall coordinate his work with the Contractor and other subcontractors in order to avoid any delays in the overall schedule as well as attend coordination meetings as directed by the General Contractor. The Subcontractor understands that it may be necessary to incorporate such coordinated work into his field layout, shop drawings and as-built drawings.

10. The Subcontractor shall provide protection necessary to safeguard his own work, as well as the work of other trades, from damage by his own operations.

11. The Subcontractor shall provide full time supervision while work is taking place and the project manager and foreman shall not be removed without the permission of the Contractor.

12. The Subcontractor shall provide daily reports to the Contractor in the form approved by the contractor, and any other documentation required by the Prime contract between the Contractor and the Owner / Agency.

13. The Subcontractor shall submit all a list of all suppliers and subcontractors he intends to use for the project, prior to release of the first application for payment. These suppliers and subcontractors are subject to the approval of the Owner and the General Contractor. If requested by the General Contractor, the Subcontractor shall furnish copies of Purchase Orders and Subcontracts for such suppliers and subcontractors.

14. The Subcontractor has visited and carefully examined the project site and has become familiar with the existing conditions and difficulties that may affect the execution of the work. The Subcontractor is aware that his work is being performed adjacent to existing conditions that are in service and agrees to take all necessary steps to avoid damages to the existing areas.

15. The subcontractor shall provide all labor, material and equipment to furnish and install work scope as per contract drawings, specifications, addendums and Phasing Exhibit as listed under Exhibit B. Installation to be as per code and SCA standards. Coordinate and phase work with other trades.

Work Scope:

Provide all labor, material, and equipment to furnish and install all Wood casework, cabinets, bathroom tops, and shelving Work as indicated in contract documents, specifications, addendums, Exhibit B and as they relate to industry standards and install the required work per code in the new and existing school building(s). Obtain and coordinate all related permits, inspections, and signoffs. Caulk and touch up where required for final finish approval is the responsibility of the subcontractor. AT AT

Coordinate installation of scope of work with all trades including but not be limited to concrete, carpentry, steel, masonry, tile, painter, electrical, plumbing, sprinkler, etc. Coordinate and sign off all scope of work per SCA CID inspector.

INCLUSIONS:

- Adjustable Shelves.
- Bathroom tops.
- Bookcases & miscellaneous cases & cabinets.
- Built-in countertops.
- Built-in cabinet @ Lobby.
- Built-in Bench with Panels @ Lobby.
- Classroom computer & sink countertops.
- Cubby Units.
- Dance barre - Wood Dowel.
- Interiors of built-in student's wardrobes, teacher's wardrobes, or storage closets.
- Open shelves with laminated tops
- Security desk.
- Service Window.
- Stage: Stairs, Front, Surround, & Trim.
- Wall hung shelves.
- Window Sills – Solid Surface – (Not Quartz).

EXCLUSIONS:

- Caulking.
- Doors, Frames, & Associated Hardware.
- AP-1 panels.
- Display Cabinet.
- Fire Extinguisher Cabinet.
- Glass @ Service window.
- Handrail @ Stage.
- Custom and/or structural steel.
- Existing building.
- Spec Section #11600 - Lab Casework

EXHIBIT "B"

Contract Manual

3/29/2024 DESIGN NO. LLW# 127456

NEW YORK CITY SCHOOL CONSTRUCTION AUTHORITY
STANDARD SPECIFICATIONS

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3/29/24

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ARCHITECTURAL

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A105.00	FIFTH FLOOR PLAN	3/29/2024
A106.00	SIXTH FLOOR PLAN	3/29/2024
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INTERIORS

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FF220.00	GRADE 3 RM. #331 PLAN AND SCHEDULE	3/29/2024
FF221.00	GRADE 4 RM. #426 PLAN AND SCHEDULE	3/29/2024
FF222.00	GRADE 4 RM. #434 PLAN AND SCHEDULE	3/29/2024
FF223.00	GRADE 4 RM. #436 PLAN AND SCHEDULE	3/29/2024
FF224.00	GRADE 4 RM. #431 PLAN AND SCHEDULE	3/29/2024
FF226.00	GRADE 5 RM #429 PLAN AND SCHEDULE	3/29/2024
FF227.00	GRADE 5 RM. #427 PLAN AND SCHEDULE	3/29/2024
FF228.00	GRADE 5 RM. #403 PLAN AND SCHEDULE	3/29/2024
FF229.00	GRADE 5 RM. #425 PLAN AND FURNITURE SCHEDULE	3/29/2024
FF235.00	LOBBY #107 PART. PLAN AND FURNITURE SCHEDULE	3/29/2024
FF236.00	CAFE. #101, DIET. OFF. #106D AND LOCK. RMS. 106G, 106H PART. PLANS AND FURN. SCHED.	3/29/2024
FF237.00	CAFE. #101, DIET. OFF. #106D AND LOCK. RMS. 106G, 106H ELEVATIONS AND FURN. SCHED	3/29/2024
FF238.00	MULTI PURPOSE ROOM #402 AND PLATFORM #410 PLAN AND SCHEDULES	3/29/2024

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FF239.00	MULTI PURPOSE ROOM #402 AND PLATFORM #410 PLAN AND SCHEDULES	3/29/2024
FF240.00	MULTI PURPOSE ROOM #402 AND PLATFORM #410 ELEVATIONS	3/29/2024
FF241.00	ADMINISTRATIVE OFFICES #112 THRU #114A PART. PLAN AND SCHEDULES	3/29/2024
FF242.00	MEDICAL SUITE #118 THRU #118F PLAN AND SCHEDULES	3/29/2024
FF243.00	LIBRARY #218 PLAN AND SCHEDULE	3/29/2024
FF244.00	ART ROOM #502 PLAN AND SCHEDULE	3/29/2024
FF245.00	MUSIC ROOM #336 PLAN AND SCHEDULE	3/29/2024
FF246.00	SCIENCE ROOM #504 PLAN AND SCHEDULE	3/29/2024
FF247.00	C.W. SPECIAL ED. CLASSROOM (10-10) #318 PLAN AND SCHEDULE	3/29/2024
FF248.00	C.W. SPECIAL ED. (10-11) RM. #326 PLAN AND SCHEDULE	3/29/2024
FF249.00	C.W. SPECIAL ED. SPEECH RM. #324 AND #320 PLAN AND SCHEDULE	3/29/2024
FF250.00	C.W. OFFICE #316 PLAN AND SCHEDULE	3/29/2024
FF251.00	C.W. SPEC. ED. RESOURCE RM. #304 AND #313 PLAN AND SCHEDULE	3/29/2024
FF252.00	C.W. SPEC. ED. OCCUPATIONAL THERAPY #310 PLAN AND SCHEDULE	3/29/2024
FF253.00	C.W. SPEC. ED. PHYSICAL THERAPY #314 PLAN AND SCHEDULE	3/29/2024
FF254.00	C.W. SPEC. ED. SUPERVISORY OFFICE #330 AND #311 PLAN AND SCHEDULE	3/29/2024
FF255.00	C.W. SPEC. ED. STORAGE ROOM #306, #302, #305 AND #322 PLAN AND SCHEDULE	3/29/2024
FF256.00	C.W. SPEC. ED. MULTI-PURPOSE RM. #334 PLAN AND SCHEDULE	3/29/2024
FF257.00	C.W. SPEC. ED. CHANGING ROOM #332 PLAN AND SCHEDULE	3/29/2024
FF258.00	CSD SPECIAL ED. CLASSROOM #503 AND #418 PLAN AND SCHEDULE	3/29/2024
FF259.00	PROJECT ROOM #208 PLAN AND SCHEDULE	3/29/2024
FF260.00	STAFF LUNCH / CONFERENCE ROOM #527 PLAN AND SCHEDULE	3/29/2024
FF261.00	TEACHER'S WORK ROOM #529 PLAN AND SCHEDULE	3/29/2024
FF262.00	GUIDANCE / SBST SUITE #212 THRU #214 PLANS AND SCHEDULES	3/29/2024
FF263.00	PARENTS / COMMUNITY RM. #108	3/29/2024
FF264.00	REFUSE AND RECYCLING ROOM #104 PLAN AND SCHEDULE	3/29/2024
FF265.00	CUSTODIAN OFFICE PLAN #531 AND SCHEDULE	3/29/2024
FF266.00	CUSTODIAN LOCKER ROOMS #510 AND #512	3/29/2024

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	PLAN AND SCHEDULE	
FF267.00	CUSTODIAN WORKROOM #508 PLAN AND SCHEDULE	3/29/2024
FF268.00	READING RESOURCE ROOM #416 PLAN AND SCHEDULE	3/29/2024
FF269.00	SPEECH RESOURCE ROOM #202 PLAN AND SCHEDULE	3/29/2024
FF270.00	HEALTH INSTRUCTOR'S OFFICE #401 PLAN AND SCHEDULE	3/29/2024
FF271.00	GENERAL STORAGE #514 PLAN AND SCHEDULE	3/29/2024
FF272.00	GROUNDS AND ROOF EQUIP. STORAGE #G101, #516 AND #406 PLANS AND SCHEDULES	3/29/2024
FF273.00	SUPERVISORY OFFICES #610 AND #430 PLANS AND SCHEDULES	3/29/2024
FF274.00	C.W. GUIDANCE OFFICES #315 AND #317 PLANS AND SCHEDULES	3/29/2024
FF281.00	C.W. SPECIAL ED. (10-11) RM. #308 PLAN AND SCHEDULE	3/29/2024
FF282.00	C.W. SPECIAL ED. (10-11) RM. #312 PLAN AND SCHEDULE	3/29/2024
FF283.00	C.W. SPECIAL ED. (10-11) RM. #309 PLAN AND SCHEDULE	3/29/2024
FF284.00	C.W. SPECIAL ED. (10-10) RM. #303 PLAN AND SCHEDULE	3/29/2024
FF285.00	C.W. SPECIAL ED. (10-10) RM. #307 PLAN AND SCHEDULE	3/29/2024
FF286.00	C.W. SPECIAL ED. (10-10) RM. #301 PLAN AND SCHEDULE	3/29/2024
FF287.00	EXERCISE RM. #210 PLAN AND SCHEDULE	3/29/2024

VOLUME 2

STRUCTURAL

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FO101.00	CELLAR FOUNDATION PLAN	3/29/2024
FO102.00	UPPER FOUNDATION PLAN	3/29/2024
FO201.00	FOUNDATION SECTIONS	3/29/2024
FO202.00	FOUNDATION SECTIONS	3/29/2024
FO203.00	FOUNDATION SECTIONS	3/29/2024
FO204.00	FOUNDATION SECTIONS	3/29/2024
FO401.00	FOUNDATION TYPICAL DETAILS	3/29/2024
FO402.00	FOUNDATION TYPICAL DETAILS	3/29/2024
S001.00	STRUCTURAL GENERAL NOTES	3/29/2024
S002.00	STRUCTURAL GENERAL NOTES	3/29/2024

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S103.00	FIRST FLOOR FRAMING PLAN	3/29/2024
S104.00	SECOND FLOOR FRAMING PLAN	3/29/2024
S105.00	THIRD FLOOR FRAMING PLAN	3/29/2024
S106.00	FOURTH FLOOR FRAMING PLAN	3/29/2024
S107.00	FIFTH FLOOR FRAMING PLAN	3/29/2024
S108.00	SIXTH FLOOR FRAMING PLAN	3/29/2024
S109.00	ROOF/ BULKHEAD FRAMING PLAN	3/29/2024
S110.00	ROOF TOP FRAMING PLAN	3/29/2024
S111.00	DUNNAGE FRAMING PART PLANS	3/29/2024
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S203.00	SUPERSTRUCTURE SECTIONS	3/29/2024
S301.00	STRUCTURAL SCHEDULES	3/29/2024
S302.00	STRUCTURAL SCHEDULES	3/29/2024
S303.00	SHEAR WALL ELEVATIONS	3/29/2024
S304.00	SHEAR WALL ELEVATIONS	3/29/2024
S305.00	SHEAR WALL ELEVATIONS	3/29/2024
S311.00	PLAY ROOF ENCLOSURE ELEVATIONS	3/29/2024
S312.00	PLAY ROOF ENCLOSURE ELEVATIONS	3/29/2024
S401.00	TYPICAL DETAILS	3/29/2024
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S403.00	TYPICAL DETAILS	3/29/2024
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S406.00	TYPICAL DETAILS	3/29/2024

MECHANICAL

DWG. NO.	TITLE	DATE
M001.00	MECHANICAL SYMBOLS, NOTES, AND ABBREVIATIONS	3/29/2024
M002.00	MECHANICAL CALCULATIONS	3/29/2024
M003.00	MECHANICAL SCHEDULES SHEET NO.1	3/29/2024
M004.00	MECHANICAL SCHEDULES SHEET NO.2	3/29/2024
M100.00	CELLAR FLOOR MECHANICAL PLAN	3/29/2024
M101.00	FIRST FLOOR MECHANICAL PLAN	3/29/2024
M102.00	SECOND FLOOR MECHANICAL PLAN	3/29/2024
M103.00	THIRD FLOOR MECHANICAL PLAN	3/29/2024
M104.00	FOURTH FLOOR MECHANICAL PLAN	3/29/2024
M105.00	FIFTH FLOOR MECHANICAL PLAN	3/29/2024
M106.00	SIXTH FLOOR MECHANICAL PLAN	3/29/2024
M107.00	ROOF / BULKHEAD FLOOR AND ROOF TOP MECHANICAL PLAN	3/29/2024
M301.00	HVAC FUEL OIL PART PLANS AND DETAILS SHEET NO.1	3/29/2024

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M302.00	HVAC FUEL OIL PART PLANS AND DETAILS SHEET NO.2	3/29/2024
M401.00	HVAC AIR RISER DIAGRAM	3/29/2024
M402.00	HVAC REFRIGERANT RISER DIAGRAM	3/29/2024
M403.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 1	3/29/2024
M404.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 2	3/29/2024
M405.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 3	3/29/2024
M406.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 4	3/29/2024
M407.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 5	3/29/2024
M408.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 6	3/29/2024
M409.00	HVAC INSTRUMENTATION CONTROL SHEET NO. 7	3/29/2024
M501.00	HVAC DETAILS SHEET NO. 1	3/29/2024
M502.00	HVAC DETAILS SHEET NO. 2	3/29/2024
M503.00	HVAC DETAILS SHEET NO. 3	3/29/2024
M504.00	HVAC DETAILS SHEET NO. 4	3/29/2024
M505.00	HVAC DETAILS SHEET NO. 5	3/29/2024

FIRE PROTECTION

DWG. NO.	TITLE	DATE
SD/SP001.00	FIRE PROTECTION NOTES, SYMBOLS AND ABBREVIATIONS	3/29/2024
SD/SP002.00	FIRE PROTECTION SCHEDULES	3/29/2024
SD/SP100.00	CELLAR FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP101.00	FIRST FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP102.00	SECOND FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP103.00	THIRD FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP104.00	FOURTH FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP105.00	FIFTH FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP106.00	SIXTH FLOOR FIRE PROTECTION PLAN	3/29/2024
SD/SP107.00	ROOF/ BULKHEAD AND ROOF TOP FIRE PROTECTION PLAN	3/29/2024
SD/SP201.00	FIRE PROTECTION RISER DIAGRAM	3/29/2024
SD/SP301.00	FIRE PROTECTION DETAILS	3/29/2024
SD/SP401.00	FIRE PROTECTION PART PLANS	3/29/2024

PLUMBING

DWG. NO.	TITLE	DATE
P001.00	PLUMBING NOTES, SYMBOLS AND ABBREVIATIONS	3/29/2024
P002.00	PLUMBING SCHEDULES	3/29/2024
P003.00	PLUMBING ENERGY COMPLIANCE SHEET	3/29/2024
P100.00	CELLAR FLOOR PLUMBING PLAN	3/29/2024

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P101.00	FIRST FLOOR PLUMBING PLAN	3/29/2024
P102.00	SECOND FLOOR PLUMBING PLAN	3/29/2024
P103.00	THIRD FLOOR PLUMBING PLAN	3/29/2024
P104.00	FOURTH FLOOR PLUMBING PLAN	3/29/2024
P105.00	FIFTH FLOOR PLUMBING PLAN	3/29/2024
P106.00	SIXTH FLOOR PLUMBING PLAN	3/29/2024
P107.00	ROOF / BULKHEAD FLOOR AND ROOF TOP PLUMBING PLAN	3/29/2024
P201.00	PLUMBING PART PLANS	3/29/2024
P202.00	KITCHEN PART PLANS	3/29/2024
P301.00	PLUMBING DOMESTIC WATER RISER DIAGRAM	3/29/2024
P302.00	PLUMBING SANITARY VENT RISER DIAGRAM	3/29/2024
P303.00	PLUMBING STORM RISER DIAGRAM	3/29/2024
P304.00	PLUMBING KITCHEN SANITARY AND DOMESTIC WATER RISER DIAGRAMS	3/29/2024
P501.00	PLUMBING DETAIL SHEET NO. 1	3/29/2024
P502.00	PLUMBING DETAIL SHEET NO. 2	3/29/2024
P503.00	PLUMBING DETAIL SHEET NO. 3	3/29/2024

ELECTRICAL

DWG. NO.	TITLE	DATE
E001.00	ELECTRICAL SYMBOL LIST, NOTES, AND ABBREVIATIONS	3/29/2024
E002.00	ELECTRICAL SITE PLAN	3/29/2024
E003.00	ELECTRICAL LIGHTNING PROTECTION PLAN	3/29/2024
E004.00	ELECTRICAL GROUNDING PLAN	3/29/2024
E100.00	CELLAR LIGHTING PLAN	3/29/2024
E101.00	FIRST FLOOR LIGHTING PLAN	3/29/2024
E102.00	SECOND FLOOR LIGHTING PLAN	3/29/2024
E103.00	THIRD FLOOR LIGHTING PLAN	3/29/2024
E104.00	FOURTH FLOOR LIGHTING PLAN	3/29/2024
E105.00	FIFTH FLOOR LIGHTING PLAN	3/29/2024
E106.00	SIXTH FLOOR LIGHTING PLAN	3/29/2024
E107.00	ROOF / BULKHEAD FLOOR AND ROOF TOP LIGHTING PLAN	3/29/2024
E200.00	CELLAR POWER PLAN	3/29/2024
E201.00	FIRST FLOOR POWER PLAN	3/29/2024
E202.00	SECOND FLOOR POWER PLAN	3/29/2024
E203.00	THIRD FLOOR POWER PLAN	3/29/2024
E204.00	FOURTH FLOOR POWER PLAN	3/29/2024
E205.00	FIFTH FLOOR POWER PLAN	3/29/2024
E206.00	SIXTH FLOOR POWER PLAN	3/29/2024
E207.00	ROOF / BULKHEAD FLOOR AND ROOF TOP POWER PLAN	3/29/2024

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3/29/2024 DESIGN NO. LLW# 127456

E300.00	CELLAR FLOOR TELECOMMUNICATIONS PLAN	3/29/2024
E301.00	FIRST FLOOR TELECOMMUNICATION PLAN	3/29/2024
E302.00	SECOND FLOOR TELECOMMUNICATION PLAN	3/29/2024
E303.00	THIRD FLOOR TELECOMMUNICATION PLAN	3/29/2024
E304.00	FOURTH FLOOR TELECOMMUNICATION PLAN	3/29/2024
E305.00	FIFTH FLOOR TELECOMMUNICATIONS PLAN	3/29/2024
E306.00	SIXTH FLOOR TELECOMMUNICATIONS PLAN	3/29/2024
E307.00	ROOF / BULKHEAD FLOOR TELECOMMUNICATIONS PLAN	3/29/2024
E401.00	ELECTRICAL PART PLANS	3/29/2024
E402.00	ELECTRICAL PART PLANS	3/29/2024
E403.00	ELECTRICAL PART PLANS	3/29/2024
E501.00	ONE LINE DIAGRAM	3/29/2024
E502.00	ELECTRICAL RISER DIAGRAM	3/29/2024
E503.00	TELECOM DATA RISER DIAGRAM	3/29/2024
E504.00	TELECOM TELEPHONE RISER DIAGRAMS	3/29/2024
E505.00	TELECOM SOUND/ CLOCK SYSTEMS RISER DIAGRAMS	3/29/2024
E506.00	TELECOM SOUND SYSTEM MATRIX RISER DIAGRAM SCHEDULE	3/29/2024
E507.00	TELECOM INTRUSION ALARM SYSTEM RISER DIAGRAM	3/29/2024
E508.00	TELECOM AUXILIARY RISER DIAGRAMS	3/29/2024
E509.00	TELECOM IPDVS SECURITY CAMERA RISER DIAGRAM	3/29/2024
E510.00	TELECOM CONDUIT RISER DIAGRAM	3/29/2024
E601.00	LIGHTING FIXTURE AND CONTROL SCHEDULE	3/29/2024
E602.00	LIGHTING CONTROL SCHEDULES	3/29/2024
E603.00	ELECTRICAL PANEL SCHEDULES	3/29/2024
E604.00	ELECTRICAL PANEL SCHEDULES	3/29/2024
E605.00	ELECTRICAL PANEL SCHEDULES	3/29/2024
E606.00	ELECTRICAL PANEL SCHEDULES	3/29/2024
E607.00	ELECTRICAL PANEL SCHEDULES	3/29/2024
E701.00	ELECTRICAL DETAILS	3/29/2024
E702.00	ELECTRICAL DETAILS	3/29/2024
E703.00	ELECTRICAL DETAILS	3/29/2024
E704.00	ELECTRICAL DETAILS	3/29/2024
E705.00	ELECTRICAL DETAILS	3/29/2024
E706.00	ELECTRICAL DETAILS	3/29/2024
E707.00	EMERGENCY GENERATOR DETAILS	3/29/2024
E708.00	ELECTRICAL DETAILS	3/29/2024
E709.00	ELECTRICAL DETAILS	3/29/2024

Technico: AT Elli NY Design:

3/29/2024 DESIGN NO. LLW# 127456

FIRE ALARM

DWG. NO.	TITLE	DATE
FA001.00	FIRE ALARM SYMBOLS, NOTES, AND ABBREVIATIONS	3/29/2024
FA100.00	CELLAR FIRE ALARM PLAN	3/29/2024
FA101.00	FIRST FLOOR FIRE ALARM PLAN	3/29/2024
FA102.00	SECOND FLOOR FIRE ALARM PLAN	3/29/2024
FA103.00	THIRD FLOOR FIRE ALARM PLAN	3/29/2024
FA104.00	FOURTH FLOOR FIRE ALARM PLAN	3/29/2024
FA105.00	FIFTH FLOOR FIRE ALARM PLAN	3/29/2024
FA106.00	SIXTH FLOOR FIRE ALARM PLAN	3/29/2024
FA107.00	ROOF / BULKHEAD FLOOR AND ROOF TOP FIRE ALARM PLAN	3/29/2024
FA201.00	FIRE ALARM RISER DIAGRAM	3/29/2024
FA401.00	FIRE ALARM DETAILS	3/29/2024

END OF LIST OF DRAWINGS

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Technico: AT Elli NY Design:

ADDENDA

ADDENDUM #1 – Issued May 30, 2024
ADDENDUM #2 – Issued June 4, 2024
ADDENDUM #3 – Issued June 5, 2024
ADDENDUM #4 – Issued June 13, 2024
ADDENDUM #5 – Issued June 14, 2024
ADDENDUM #6 – Issued June 14, 2024

PHASING EXHIBIT

PHASING EXHIBIT
PS @ 3850 Review Place / X515 (Bronx)
New 6-Story School Building w/Rooftop Playyard
Solicitation #: SCA24-026457-1
LLW No(s): 127456

The following phasing plan shall apply to the SPECIFICATION & DRAWINGS for the subject project:

1) All work prior to school occupancy may be performed during normal working hours. All work subsequent to school occupancy shall be performed after normal school hours.

2) The Contractor is fully aware that portions of this work will be performed in a school facility operating during times indicated below. The School Construction Authority will cease any construction operations causing excessive noise, dust or similar disruptions during the hours in which they are allowed to work, and school is in session.

3) Normal school hours are:
- *7:00AM to 3:00PM* Monday through Friday- School Year.
- *8:00AM to 1:00PM* Saturday- School Year.
- *8:00AM to 2:30PM* Monday through Friday- Summer School (July & August).
- *8:00AM to 2:30PM* Saturday- Summer School (July & August).

4) After-school activities hours are:
- *3:00PM to 6:00PM* Monday through Friday- School Year.
- *1:00PM to 6:00PM* Saturday-School Year.
- *2:30PM to 6:00PM* Monday through Friday-Summer School (July & August).
- *2:30PM to 6:00PM* Saturday- Summer School (July & August).

5) After School Occupancy, the Contractor shall take all precautions necessary to ensure that the construction operation will in no way interrupt or otherwise affect the activities of the school.

6) After School Occupancy, the SCA, in conjunction with Principal(s), will issue to the Contractor a list of consecutive (and or non-consecutive) days during which no work may proceed. The Contractor will not be allowed to perform any work on these days. The Contractor's bid and work schedule shall account for twenty (20) lost production days.

7) The contractor shall provide one (1) uniformed security guard to be posted at the job site (for 24 hours/per day for weekdays, weekends and holidays). Security services shall be provided starting thirty (30) consecutive calendar days from the start date indicated by the Notice to Proceed (NTP) letter, until the new building is occupied by the Department of Education (DOE) in September of the year TCO is achieved. After the new building is occupied by DOE, the contractor shall provide one (1) uniformed security guard during working hours until the Contract Final Completion is achieved.

8) After School Occupancy, no deliveries, crane or hoisting activities will be permitted during normal school hours.

9) After School Occupancy, all hot work, and potable water disinfection shall be done when the building is vacant.

Technico: AT Elli NY Design:

PHASING EXHIBIT
PS @ 3850 Review Place / X515 (Bronx)
New 6-Story School Building w/Rooftop Playyard
Solicitation #: SCA24-026457-1
LLW No(s): 127456

10) No parking by construction personnel shall be allowed on the site.

11) After School Occupancy, the location of waste containers, field offices, dedicated stairs for construction, and staging areas shall be coordinated with the Custodian and the SCA.

12) After School Occupancy, no storage space or toilet facilities will be available for construction personnel inside the school.

13) The contractor shall perform all necessary coordination, scheduling, and work with utility companies to provide all temporary and permanent services.

14) The contractor shall be responsible for the location and protection of all overhead and underground utilities at the site during all phases of work.

15) The contractor shall provide notification to the SCA of all work to be performed on or near the property line with an adjoining or adjacent property ten (10) business days prior to the start of the work.

16) The MDF and IDF rooms shall be ready for all work designated as "by others" ninety (90) consecutive calendar days prior to the TCO. This work shall include, but not be limited to all wires, cables, conduit racks, panels, mounting boards, cable trays and the climate control system within all these rooms. The Contractor shall complete the installation and provide an approved final cable testing report before the work is considered complete. The Contractor will be assessed liquidated damages in the amount of Five Hundred ($500) Dollars for each continuous calendar day that the above duration is not achieved. This liquidated damage is in addition to all other liquidated damages under the subject contract.

17) The IPDVS shall be ready for all work designated as "by others" thirty (30) consecutive calendar days prior to the TCO. This work shall include, but not be limited to all wires, cables, conduit racks, panels, mounting boards, cable trays and cable testing. The Contractor shall complete the installation and provide an approved final cable testing report before the work is considered complete. The Contractor will be assessed liquidated damages in the amount of Two Thousand ($2,000) Dollars for each continuous calendar day that the above duration is not achieved. This liquidated damage is in addition to all other liquidated damages under the subject contract.

18) Within twenty (20) consecutive calendar days from the start date indicated by the Notice to Proceed (NTP) the contractor and their Filing Representative shall attend a meeting with SCA to review the permit requirements.

19) The contractor shall provide the SCA Chief Project Officer with all permit waiver requests prior to submission to BCC for approval.

Technico: AT

Elli NY Design:

PHASING EXHIBIT
PS @ 3850 Review Place / X515 (Bronx)
New 6-Story School Building w/Rooftop Playyard
Solicitation #: SCA24-026457-1
LLW No(s): 127456

20) Unless otherwise indicated in the project specifications or below, within 120 consecutive calendar days from the start date indicated by the Notice to Proceed (NTP) the Contractor shall submit all submittals in accordance with the contract documents for the following items:

Site Work, Concrete & Metals

- Detention System Packages (45 CCD's)
- Dewatering Plan (45 CCD's)
- Foundation Sdwgs (45 CCD's)
- Structure Sdwgs (345CCD's)

MEP

- Fuse cut out panel
- Switchboards (main switchboard and penthouse switchboard)
- Lighting control panels
- Domestic Water Booster Pump Skid
- Heat Pump Water Heaters
- Water Filtration System
- Sewage Ejector Pumps
- Grease Interceptors
- AHUs
- Boilers
- Chiller
- Pumps
- Heat Exchangers
- Air Separator
- Fans
- Generator

Elevator/Lift

- Elevator and related equipment
- Lift and related equipment

Architectural/Furnishings

- Rainscreen Systems (60 CCD's)
- Granite (60 CCD)
- Storefront Glazing Systems
- Custom millwork
- Telescoping Seating

21) To avoid possible conflict of interest, the contractor shall not engage any firms, including, but not limited to architect, engineer, and expeditor, who has worked or is currently working for the SCA or any SCA sub-consultant on this project unless it has been approved by the SCA project officer in writing.

Technico: AT Elli NY Design:

PHASING EXHIBIT
PS @ 3850 Review Place / X515 (Bronx)
New 6-Story School Building w/Rooftop Playyard
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22) The contractor may have no onsite access for any activities until 365 continuous calendar days (ccds) from the start date indicated by the Notice to Proceed (NTP). The Contractor shall incorporate all General Condition cost for the 365 ccds. The SCA reserves the right to grant site access for the purpose of surveying the site and/or start of contract work to the Contractor prior to the 365 ccds. Any or all of the 365 ccds (if not used) shall be shifted to the period prior to Phase 1 TCO as activity "site access shift" on the Contract Schedule. This activity shall be logically restrained by those items that require to proceed with TCO.

23) The contractor shall employ and maintain on site a full-time Mechanical Super while mechanical work is being performed. The Mechanical Super shall address all issues, coordinate work, manage coordination meetings, schedule all necessary mechanical testing and inspections for all mechanical, electrical, plumbing, and sprinkler trades. The resume of the proposed mechanical super shall be submitted for SCA approval.

24) SCA has obtained all agreements with the owner of the adjoining property. The Contractor is referred to drawing R001, R002, R003 and R004, "Zone of Public Protection Plan". In addition to all requirements of the New York City Building Code, the SCA Site Safety manual and the contract documents the contractor shall include in their bid all costs as detailed on the "Zone of Public Protection Plan".

25) The Contractor shall provide Two (2) field office for the SCA's use within 30 days of NTP. One field office shall be equal or similar to Cassone CA1260 with one bathroom and 2 offices and connected to the street sewer/water and the other shall be equal or similar to a Cassone CA1040 with 1 office and 1 bathroom. The Contractor shall obtain all pertinent permits as required. Specification S01500.1.14.B and Appendix B should be applied to both field offices.

26) The contractor shall submit coordination drawings for all floors within (120) continuous calendar days (CCDs) from Notice to Proceed (NTP) and shall provide complete set of approved coordination drawings within (224) continuous calendar days (CCDs) from Notice to Proceed (NTP).

27) Contractor must comply with the Excavation Sequence noted below:

- Contractor shall excavate the entire basement area to elevation 9.13.
- Contractor shall install a dewatering system prior to excavation below 9.13. Localized dewatering will be unacceptable. Refer to Spec 02200 for additional dewatering requirements.
- Contractor shall excavate basement area for the lower elevations 6.13 and 0.15 in the presence and under the supervision of the geotechnical engineer.

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PROJECT PHASING

Work shall be executed in accordance with the following phases:

Phase I- New Building Occupancy with TCO
Phase II- Contract Completion

Phase I – New Building Occupancy with TCO

1) Work within this phase includes but is not limited to construction of the new building, including completion of all site work, general construction, HVAC, plumbing, electrical, fire protection, life safety systems, with only punch list work remaining. At the completion of this phase, the contractor will be responsible for obtaining a Temporary Certificate of Occupancy (TCO) from the Department of Buildings for the New Building. This phase cannot be declared complete until the TCO is obtained.

2) The future building in the neighboring lot will be constructed in a similar timeframe. This building will adjoin ours on the northeast and southeast elevations. The Contractor must plan activities working east to west.

3) Once the structure is complete, installation of the Rainscreen, Masonry, and Granite Base must be completed on the East Elevation before moving to remaining elevations.

4) Work indicated in Phase I including obtaining the TCO shall be completed within **914** consecutive calendar days (CCDs) from the start date indicated by the Notice to Proceed (NTP). Additional liquidated damages shall be assessed in the amount of Five Thousand ($5,000) Dollars for each continuous calendar day that the contractor does not meet the completion date indicated above. These liquidated damages are in addition to all other liquidated damages under the subject contract.

Phase II – Contract Completion

1) Complete all remaining work to obtain substantial completion.

2) Phase II work shall be completed within the remaining contract duration.

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